

4 January 2024

Dr Richard McLean
crystalandbarran@gmail.com

By email: crystalandbarran@gmail.com

Dear Dr McLean

Your obligations under the NDIS Service Agreement with Karingal St Laurence Ltd

I refer to your NDIS Service Agreement with Karingal St Laurence Ltd (**genU**) dated 14 December 2023 (**Agreement**).

It has been brought to our attention that you have recorded and published on YouTube two phone conversations with a genU employee, Carol Cope without her consent, which include:

- the unauthorised disclosure of personal information of Carol without her consent;
- derogatory statements; and
- generally harassing conduct and disrespectful communication towards Carol.

genU takes the safety and wellbeing of its staff very seriously. We believe in fostering open communication with all our clients and staff and taking necessary steps to ensure a secure and supportive working environment for all.

Your conduct has breached your Agreement with us. We remind you of your obligations under clause 1 of the Agreement where you have agreed to *"treat our staff with courtesy and respect"* and to *"help us provide a healthy and safe workplace for our staff."*

Please also note that recording and publishing private conversations without the other party's consent breaches the *Surveillance Devices Act 1999* (Vic).

We stress that our dedicated staff are here to provide you with the level of care and service under your NDIS plan. It is important that they can continue to assist you without risk to their wellbeing. Please assist us to assist you by immediately removing all videos from YouTube and other online platforms which contain recordings of genU staff published without their consent and cease from engaging in disrespectful conduct towards our staff.

Should you not remove the videos by **5pm Friday 5 January 2024**, we will be left with no option but to terminate our Agreement with you which will take effect from **Friday 19 January 2024**. We will however use our best endeavours to transfer you to an alternative registered NDIS provider so that you can continue to receive the level of care and service you require.

We look forward to your understanding and assistance.

Yours faithfully

A handwritten signature in black ink, appearing to read 'Heeney', with a large, sweeping flourish underneath.

Travis Heeney
Chief Operating Officer
Karingal St Laurence Ltd